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[redacted]

This Engagement Letter, including the terms and conditions and any exhibits, attachments, addenda or appendices attached hereto (collectively, the "Agreement"), dated as of December 19, 2025 (the "Effective Date"), is between [redacted] ("Client") and KPMG LLP ("KPMG"), whereby Client is engaging KPMG to provide the professional services described herein (the "Services").

## 1. Scope of Services

### *1.1. Section 45X Advanced Manufacturing Production Credit - EAM*

KPMG shall assist Client with the identification and quantification of the expenditures that may qualify for the IRC Section 45X Advanced Manufacturing Production Credit for the tax year ended December 31, 2025.

Specifically, KPMG shall:

- Prepare a summary report documenting Client's current eligibility for the Section 45X tax credit specific to electrode active materials (EAM), including interpretations of the current rules, preliminary analysis of Client's current product(s), and additional credits and incentives considerations for future tax compliance estimate purposes.
- Prepare documentation of the Section 45X tax credit computation including supporting memorandums, calculation schedules, and final audit ready deliverable package ("Files"), including but not limited to qualification of direct and indirect materials included in the EAM production process, reviewing the bill of material details, and reviewing the production costs included for the basis of the Section 45X credit available for the EAMs.
- Review the taxable year production data to confirm that only eligible components being produced in the taxable year are factored into the calculation. Inclusive of conversations with subject matter experts on an as needed basis.
- Review the taxable year sales data to confirm that only eligible components being sold (and not returned) in the taxable year are factored into the calculation.
- Assist Client with understanding the tax compliance requirements to claim the credit.
- Provide technical guidance on how to complete the pre-filing process for the direct pay option, or for transferring the credit to an unrelated party, as applicable.

### *1.2. Tax consulting – PFE and material assistance analysis*

KPMG will assist the Client with understanding the impacts of the One Big Beautiful Bill (OBBB) on the Client's Section 45X tax credit.

To accomplish this objective KPMG shall:

KPMG LLP, a Delaware limited liability partnership and a member firm of the KPMG global organization of independent member firms affiliated with KPMG International Limited, a private English company limited by guarantee.

[redacted]

- Provide an overview of the relevant federal energy credit updates under the OBBB, including Section 45X – specifically for the prohibited foreign entity (PFE) provisions and rules for material assistance from a PFE.
- Provide options and work tools for the implementation phase to assist the Client with claiming and substantiation the Section 45X tax credit.

For certain tax credit matters that are more significant in nature and not otherwise subject to a separate agreement, we will either issue (a) a clarifying addendum to confirm the scope and related terms of any additional services to be provided or (b) a separate engagement contract (for more complex projects).

#### 1.2.1. Scope Limitation

KPMG will not provide services related to selling the credit under this Agreement.

#### 1.2.2. Deliverables

KPMG shall provide the following Deliverables:

- Section 45X tax credit summary report.
- Section 45X tax credit calculation documentation including supporting memorandums, calculation schedules, and final audit ready deliverable package.
- Spreadsheets, workflows, and other tax credit related files.

### *1.3. Corporate Alternative Minimum Tax Scope Clarification*

The Services will not include addressing the impact of the Corporate Alternative Minimum Tax.

### *1.4. Term of the Agreement*

The term hereof shall begin on the Effective Date and, unless terminated as contemplated herein, shall continue for 15 months from the Effective Date.

## 2. Fees

### *2.1. Tax Credit Services*

These services under section 1.1 are provided on a fixed fee basis. The fixed fee is $100,000.

### *2.2. Tax Consulting*

These services under section 1.2 will be based on the actual time incurred to complete the work at 65 percent of our standard hourly rates for the individuals involved in providing the services.

### *2.3. Other Fees & Expenses*

These fees and expenses are in addition to the fees for the Services.

KPMG will bill Client for out-of-pocket expenses (e.g. travel, postage, lodging, meals, etc.).

[redacted]

**3. Payment Schedule**

*3.1. Tax Credit Services*

Fees will be billed as follows:

| Progress bill to be provided | Amount to be billed |
|---|---|
| Upon execution of the Agreement | $30,000 |
| 30 days thereafter | $30,000 |
| 60 days thereafter | $30,000 |
| Upon Completion | Balance due |

* * * * * * * *

**IN WITNESS HEREOF,** the parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

[redacted]

**KPMG LLP**

By

Michael Orlando
Managing Director

12/19/2025
Date

[redacted]

# Standard Terms and Conditions for Advisory and Tax Services

August 2025 Release

**1. Definitions.**

(a) "Advice" means any advice, recommendations, work product, Deliverables, output from technology or other information provided by KPMG in connection with the Services.

(b) "Agreement" means the Engagement Letter and these Standard Terms and Conditions for Advisory and Tax Services and any exhibits, attachments, addenda or appendices attached thereto.

(c) "AICPA" means the American Institute of Certified Public Accountants.

(d) "Applicable Export Control Laws" means applicable export control laws and regulations of the United States, United Kingdom, European Union and Switzerland.

(e) "Applicable Sanctions" means comprehensive, economic, financial or trade sanctions or export embargoes maintained or enforced by the governments of the United States (including the Office of Foreign Assets Control of the U.S. Department of the Treasury, the U.S. Department of State and the U.S. Department of Commerce), Canada (including Public Safety Canada and Global Affairs Canada), the United Kingdom (including the Office of Financial Sanctions Implementation, Export Control Joint Unit, His Majesty's Treasury, the Department of Trade and Foreign, Commonwealth and Development Office), or Switzerland, the United Nations Security Council, the European Union or any European Union member state.

(f) "Change Order" means a document agreed upon by the parties in writing that includes any changes to the Engagement Letter that result from the process set forth in Section 2(c) hereof.

(g) "Change Order Event" means any of the following events that may occur during the performance of the Services: (1) a failure by any of the Client Parties and/or their vendors to perform any of their respective responsibilities set forth in this Agreement in a timely manner, (2) any unrealized, incomplete or inaccurate assumptions in the Engagement Letter or (3) delays that occur for reasons outside of KPMG's reasonable control.

(h) "Change Request" means a written request from one party to the other party for a change to the Services or Deliverables.

(i) "Client" or "you" (or derivatives thereof) means the engaging entity or entities, meaning the addressee(s) of the Engagement Letter.

(j) "Client Materials" means any and all materials, facilities, network, hardware, systems, software, data and other equipment and information, that in each case is owned by or licensed or leased to you including any third-party materials, to which we are provided access in connection with the Services.

(k) "Client Parties" means Client, its parent company and their affiliates, and their respective directors, officers, employees and agents.

(l) "Condition" means any acts of God, wars, revolution, civil commotion, pandemic, epidemic, terrorism, acts of public enemy, embargo, acts of government in its sovereign capacity, labor difficulties, including without limitation, strikes, slowdowns, picketing or boycotts, or any other circumstances beyond the reasonable control of the non-performing party.

(m) "Confidential Information" means all documents, reports, data, records, forms and other materials that due to their character and nature, a reasonable person under like circumstances would treat as confidential received by one party (the "Receiving Party") relating to the provision or receipt of Services or otherwise in connection with the Agreement from, or on behalf of, the other party (the "Disclosing Party"); except to the extent such confidential information: (1) is already known to the Receiving Party at the time of disclosure by the Disclosing Party without an obligation of confidentiality; (2) is or becomes publicly known through no wrongful act of the Receiving Party; (3) is independently developed by the Receiving Party without benefit of the Disclosing Party's Confidential Information; (4) is information provided by KPMG, as the Disclosing Party, to Client with respect to

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the tax treatment or tax structure of a transaction or (5) is received by the Receiving Party from a third party without restriction and without a breach of an obligation of confidentiality.

(n) "Data Privacy Framework" means, individually or collectively, the EU-U.S. Data Privacy Framework, UK Extension to the EU-U.S. Data Privacy Framework and Swiss-U.S. Data Privacy Framework and successor frameworks thereto.

(o) "Delayed Party" means the party delayed or unable to perform its obligations under this Agreement.

(p) "Deliverables" means the items created or configured for delivery to Client that are specified as deliverables in the Engagement Letter.

(q) "Engagement Letter" means the engagement letter to which these Standard Terms and Conditions for Advisory and Tax Services are attached.

(r) "Enabling Tools" means KPMG proprietary and third-party software tools that KPMG makes available to facilitate KPMG's Services, such as project management or communications tools.

(s) "Indemnified Party" means the party entitled to indemnification.

(t) "Indemnifying Party" means the party obligated to indemnify.

(u) "Intellectual Property Rights" means patents, copyrights, trademarks, trade secrets and similar proprietary rights.

(v) "KPMG" or "we" (or derivatives thereof) means KPMG LLP, a Delaware registered limited liability partnership and the United States member firm of the international KPMG network of independent firms.

(w) "KPMG Parties" means KPMG, Member Firms and the legal entities comprising KPMG International and their respective partners, principals, employees and agents.

(x) "KPMG Property" means KPMG's, or its licensors', inventions, technology, know-how, methodologies, works of authorship and other materials created prior to, independently of or in the course of providing the Services and all improvements, enhancements and modifications thereto and derivative works thereof, including all Intellectual Property Rights appurtenant thereto, except that KPMG Property does not include Client Confidential Information.

(y) "KPMG Resources" means KPMG, Member Firms and third-party service and technology providers engaged by KPMG or a Member Firm, which may be located in or outside of the United States.

(z) "Liabilities" means liabilities, losses, expenses (including reasonable attorneys' fees and expenses), fines, penalties, taxes and other damages.

(aa) "Legal Demand" means a validly issued legal or regulatory demand or request, subpoena or other legal process.

(bb) "Member Firms" means the members of the international KPMG network of independent firms and entities controlled by, under common control with, or sublicensees of, one or more KPMG network member firms.

(cc) "Residual Knowledge" means any generalized knowledge, experience, know-how or any ideas or concepts derived from or discovered during the provision of the Services performed under the Engagement Letter retained in unaided memory and does not contain Client's Confidential Information.

(dd) "Restricted Use" means to redistribute; reproduce (except as necessary to run); prepare derivative works; use to develop or enhance other technology; allow third parties to access (unless otherwise agreed); reverse engineer or attempt to discover source code, instructions, algorithms, training data or weights; use in violation of law or any written restrictions or attempt to disable or evade content filters.

(ee) "Services" means the services KPMG shall perform as set forth in the Engagement Letter.

**2. Our services and personnel.**

(a) Our Services will be performed in accordance with AICPA consulting and other applicable professional standards.

(b) Any work performed in connection with the engagement described in the Agreement before its execution shall be governed by the Agreement.

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(c) Either party may submit a Change Request and the parties shall discuss the impact any such Change Request may have to the Services, Deliverables, fees, timing or other aspects of the Engagement Letter. Once a Change Order is executed by the parties, it shall amend and become a part of the Engagement Letter. Without limiting the foregoing, if a Change Order Event occurs, the parties acknowledge that the Services and Deliverables may be affected, including a change in scope, timeline or fees and expenses set forth in the Engagement Letter which will require a Change Order to address the impact of such Change Order Event.

**3. Our fees.**

(a) We will bill you for fees and reasonable expenses as agreed to in the Engagement Letter. You agree to pay our invoices within thirty (30) days after receipt. If Client does not pay any properly submitted invoice amount within thirty (30) days after receipt of such invoice, then KPMG may suspend or terminate the Services. Notwithstanding the preceding sentence, unless prohibited by professional standards, any invoiced amounts not paid by their applicable due date shall accrue a late fee of the lesser of (i) 1.5% per month or (ii) the highest rate allowable by law, in each case compounded monthly to the extent allowable by law. Notwithstanding anything to the contrary set forth above, any invoice received by Client on or after August 15th of any calendar year shall be due no later than September 15th of that same calendar year.

(b) Where we are reimbursed for expenses, we will bill you for the amount we paid and we will not add any markup to the expense. After such expenses are incurred, we may receive rebates or incentive payments based on our aggregate purchases, which may include expenses reimbursed by you in addition to other clients. Such rebates are not credited back to you but are used to reduce our overhead.

(c) The fees, expenses and timelines set forth in the Engagement Letter may vary due to failure by a Client to meet its obligations under the Engagement Letter or a change in assumptions, such as failure of third parties to cooperate. Our fees do not include any sales, use, excise, value added, income or other taxes, tariffs or duties applicable to your receipt of our Services, payment of which shall be your responsibility. KPMG shall be responsible for its net income or applicable employment taxes.

**4. Acceptance of deliverables and use of our advice.**

(a) We may provide our Advice to you in draft form, but the final written Deliverable if provided supersedes any drafts provided earlier. Client shall review each Deliverable within ten (10) business days (or such other time period set forth in the Engagement Letter) after delivery (the "Acceptance Period"). Prior to the conclusion of the Acceptance Period, Client shall accept each Deliverable that materially conforms to the specifications or other requirements therefor set forth in the Engagement Letter or agreed to in writing between the parties (the "Specifications"). If Client determines that the Deliverable does not materially conform to the applicable Specifications during the Acceptance Period, then Client shall provide KPMG with a written notice of rejection specifying the material non-conformities between the Deliverable and the applicable Specifications ("Defects"). KPMG shall, at no additional cost to Client, correct the Defects after which Client shall be entitled to repeat the acceptance process set forth herein (each a "Work-out Period"). The Deliverables will be deemed accepted if the Client fails to accept or reject the Deliverables before the end of the Acceptance Period or uses the Deliverables in a production environment. To the extent any accepted Deliverable differs from the applicable Specifications, then such Specifications are hereby deemed modified to conform to the accepted Deliverable. If after three Work-Out Periods the Deliverable does not conform in all material respects with the applicable Specifications, then Client may terminate the Engagement Letter and request a refund of any amounts paid by Client for the defective Deliverable(s); provided that any such refund shall be Client's sole and exclusive remedy and KPMG's sole and exclusive liability.

(b) Deliverables bearing the "KPMG" name or logo may only be disclosed to a third party in its entirety and unmodified.

(c) Advice is provided for your sole benefit and internal business use and not for the benefit of, or to be relied upon by, any other party.

**5. Termination.**

Either party may terminate this Agreement at any time (a) by giving at least thirty (30) days' prior written notice to the other party, (b) upon thirty (30) days written notice to the other party, in the event such other party breaches a term of this Agreement and such breach remains uncured at the end of such thirty (30) day period or (c) upon written notice to the other party if laws, rules, regulations or professional standards applicable to a party preclude it from continuing to perform or receive the Services thereunder. Upon termination of this Agreement, Client shall pay all fees and expenses that have been incurred in connection with the performance of the Services through the effective date of



such termination. Any provisions of the Agreement that by their nature are intended to survive termination or expiration will survive and continue to bind the parties.

**6. Limitation on damages.**

The total liability of the Client Parties and the KPMG Parties to one another for any Liabilities relating to the Services provided under the Engagement Letter shall be limited to the amount of fees paid to KPMG under the Engagement Letter. The Client Parties or KPMG Parties will not be liable to one another for consequential, special, indirect, incidental, punitive or exemplary damages, costs, expenses or losses (including, without limitation, lost profits and opportunity costs). The preceding limitations do not apply to Liabilities arising from the parties' respective indemnification obligations or to the extent resulting from the gross negligence or willful misconduct of the parties. The provisions of this Section 6 shall apply regardless of the form of action, damage, claim, liability, cost, expense or loss asserted, whether in contract, statute, rule, regulation or tort (including but not limited to negligence) or otherwise.

**7. Ownership.**

(a) Subject to full payment to KPMG of fees owed for the applicable Services, KPMG (i) assigns to Client, all right, title and interest in and to the Deliverables except to the extent any KPMG Property is contained therein and (ii) grants Client a royalty-free, non-exclusive, non-transferable, non-sublicensable and perpetual license to use such KPMG Property solely in connection with Client's internal use of the Deliverables.

(b) Notwithstanding anything herein that may be construed to the contrary, Client agrees that nothing in this Agreement prevents KPMG from using Residual Knowledge.

**8. Indemnification.**

(a) KPMG shall indemnify, hold harmless and defend the Client Parties from and against any claims or Liabilities asserted by a third party against any of the Client Parties to the extent such Liabilities result from the infringement by the Deliverables (including any KPMG Property contained therein) of such third party's Intellectual Property Rights, except to the extent arising out of (i) use of the Deliverables other than in accordance with applicable documentation or instructions supplied by KPMG or other than for Client's internal business purposes; (ii) any modification of the Deliverables; (iii) the combination or operation of the Deliverables with materials, networks, systems or data not supplied or authorized in writing by KPMG in the Engagement Letter or (iv) KPMG's compliance with any designs, specifications or instructions provided by, or on behalf of, any of the Client Parties. In case all or part of any Deliverable (including any KPMG Property contained therein) is held, or we believe is likely to be held, to constitute infringement, in addition to our obligations set forth in this Section, we may at our option and expense either: (1) secure for you the right to continue to use such infringing item or (2) replace such item with a substantially equivalent non- infringing item or modify such item so that it becomes non-infringing. If we believe we are unable to perform any of these options, we shall refund you the amount paid to us for such item as long as you return such item to us and cease all use of the same. This Section states our entire liability and the sole and exclusive remedy with respect to any infringement or claim of infringement covered by this Section 8(a).

(b) Client shall indemnify, hold harmless and defend the KPMG Parties from and against any Liabilities incurred or suffered by or asserted against any of the KPMG Parties in connection with a third-party claim arising from (i) Advice or (ii) the Client Materials or KPMG's use thereof. The foregoing obligations shall apply regardless of whether the third-party claim alleges a breach of contract, violation of statute, rule, regulation or tort (including without limitation negligence).

(c) KPMG shall indemnify, hold harmless and defend the Client Parties from and against any Liabilities for physical injury to, or death of, any person, and damage to or destruction of any tangible property, to the extent resulting from the negligence or willful misconduct of any of the KPMG Parties. Client shall indemnify, hold harmless and defend the KPMG Parties from and against any Liabilities for physical injury to, or death of, any person, and damage to or destruction of any tangible property, to the extent such Liabilities result from the negligence or willful misconduct of any of the Client Parties.

(d) The Indemnified Party shall promptly notify the Indemnifying Party of any claim for which the Indemnified Party seeks indemnification. The Indemnifying Party shall conduct the defense or settlement of any such claim at the Indemnifying Party's sole expense, and the Indemnified Party shall cooperate with the Indemnifying Party. The party not conducting the defense shall have the right to participate in such defense or settlement at its own expense. The Indemnified Party shall have the right to approve the settlement of any claim that imposes any liability or obligation other than the payment of money damages for which the Indemnifying Party has accepted responsibility.

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**9. Client's responsibilities.**

(a) You shall reasonably cooperate with us in the performance of the Services and provide us with, or procure for us, the personnel, facilities, systems, software, equipment and information reasonably necessary for us to perform the Services, as well as fulfill any obligations set forth in the Engagement Letter. If you do not provide us with the foregoing, you acknowledge that our ability to provide the Services may be adversely affected. Client represents that it has all rights, licenses, consents and permissions necessary for KPMG to receive and use the Client Materials to perform the Services and provide the Deliverables.

(b) We rely on the materials, information and assumptions you provide to us to render our Advice. We will not independently investigate or verify the accuracy or completeness of the same. If such materials, information, or assumptions are inaccurate or incomplete, our Services or Advice could be materially affected.

(c) Client agrees that, while the Services may include advice and recommendations, all decisions in connection with the implementation of such advice and recommendations or to proceed with a proposed transaction are the sole responsibility of, and made by, Client. In particular, you shall be responsible for (i) assuming all management responsibilities and performing all management functions; (ii) overseeing the Services, by designating an individual, preferably within senior management, who possesses suitable skill, knowledge and/or experience; (iii) evaluating the adequacy and results of the Services; (iv) accepting responsibility for the results of the Services and (v) establishing and maintaining internal controls over the processes with which the Services are concerned, including performing ongoing evaluations of your internal controls as part of your monitoring activities.

**10. Use of KPMG Resources and technology.**

(a) KPMG may engage KPMG Resources to assist in the performance of the Services, for example via subcontracting or contingent workforce personnel. KPMG remains responsible to Client for the performance of such Services, and adherence to obligations of confidentiality, by any KPMG Resources to the same extent KPMG is obligated under the terms of this Agreement. Client agrees it shall not bring any claim relating to the Agreement against any KPMG Resource, other than KPMG.

(b) KPMG may, with the assistance of KPMG Resources, use information obtained during engagements (i) to analyze trends, perform comparative analysis and develop and improve benchmarks; (ii) to develop and improve technology and services and (iii) to improve other services to Client and to provide insights to Client about its business. Such information will not be disclosed to third parties other than KPMG Resources assisting KPMG with these uses unless such information is in an aggregated or anonymized format that does not identify Client. KPMG Parties may use information about Client Parties to provide services, technology and analytics to Client Parties. Information about Client's use of shared technology platforms may be used by KPMG Parties to improve services and technology and to allow clients to evaluate business transactions or opportunities.

(c) Enabling Tools are made available to Client solely to facilitate the Services, and may not be used for other purposes. Enabling Tools are not intended to be used as a system of record, repository or hosting service, and Client access to Deliverables and other documents will be removed from the Enabling Tools within a reasonable period of time (no less frequently than annually for audit clients and their affiliates) following the conclusion of the engagement to which they relate. Client shall download such Deliverables and documents for its records. Client shall cease using and delete from its systems any downloadable Enabling Tools at the conclusion of the engagement for which they were provided. Client shall not engage in, and shall indemnify, hold harmless and defend KPMG Parties from and against third-party claims arising from Client's Restricted Use of technology KPMG makes available. KPMG shall indemnify, hold harmless and defend Client from and against third-party claims that Enabling Tools infringe the Intellectual Property Rights of a third party, subject to any limits or requirements imposed by KPMG's licensors. KPMG may, through Enabling Tools or other technology, provide Client with access to features that utilize artificial intelligence to generate output. Client acknowledges that such output may contain errors or omissions, and agrees to review output prior to using it.

**11. Confidentiality.**

(a) The Receiving Party shall not disclose the Disclosing Party's Confidential Information to any other person without the Disclosing Party's prior written permission, except as otherwise set forth in this Agreement. Notwithstanding the foregoing, the Receiving Party may disclose Confidential Information to the extent that it is (i) required, necessary or permissible to be disclosed pursuant to law, rule or regulation (e.g. whistleblower laws) or, subject to appropriate conditions of confidentiality, to fulfill professional obligations and standards (including conflict review) or to its insurers; (ii) to KPMG Resources performing the applicable Services or (iii) in the case of the KPMG Parties, to the KPMG Resources providing internal, administrative, clerical, analytical and/or regulatory compliance operations and functions and information technology support. The Receiving Party shall protect the



Disclosing Party's Confidential Information as it protects its own confidential information but in no event shall use less than reasonable care.

(b) If the Receiving Party receives a Legal Demand requiring it to disclose the Disclosing Party's Confidential Information, the Receiving Party shall, unless prohibited by law or such Legal Demand, provide prompt written notice to the Disclosing Party of such Legal Demand in order to permit it to seek a protective order. The Receiving Party shall be entitled to comply with such Legal Demand to the extent required by law, subject to any protective order or the like that may have been entered in the matter.

(c) In a proceeding or investigation to which we are not a named party or respondent, if you request or we are required or authorized to produce documents or personnel as witnesses or for interviews, or otherwise to make information or materials relating to the Services available to you or a third party, you shall reimburse us for our time, at our standard hourly rates, and expenses, including reasonable attorneys' fees, incurred in responding to such request or requirement.

**12. Third-party relationships.**

KPMG is a large firm and part of a network of independent Member Firms that provide services to and have business relationships with many different entities, including entities who may have business interests that differ from Client's business interests. In accordance with applicable professional standards, prior to agreeing to provide Services requested by Client based upon the information provided by Client, KPMG will perform an internal search for any potential or actual conflicts of interest with the Services contemplated herein. Where such a potential conflict of interest is identified, KPMG would, subject to confidentiality, disclose the nature of such relationship to Client, including any planned safeguards, and seek Client's consent at such time.

**13. Assignment, waiver and severability.**

(a) Subject to Section 10, neither party may assign, transfer or delegate any of its rights, obligations, claims or proceeds from claims arising under or relating to this Agreement (including by operation of law, in which case the assigning party will, to the extent legally permissible, give as much advance written notice as is reasonably practicable thereof) without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned or delayed. Any assignment, transfer or delegation in violation hereof shall be null and void.

(b) Failure of a party to exercise or enforce any of its rights hereunder is not a waiver of such rights.

(c) In the event that any term or provision of this Agreement shall be held to be invalid, void or unenforceable, then the remainder of that provision is modified to the extent reasonably necessary to reflect the intent of the parties and this Agreement shall not be affected, and each such term and provision shall be valid and enforceable to the fullest extent permitted by law.

**14. Governing law.**

The Agreement and all disputes and claims between the parties (whether based in contract, tort, statute, rule, regulation or otherwise and whether pending in court or in an arbitral forum) shall be governed by and construed in accordance with the substantive and procedural laws of the State of New York, including without limitation its statutes of limitations, without regard to the conflict of laws provisions of New York or any other state or jurisdiction.

**15. Alternative dispute resolution.**

(a) Any dispute or claim between the parties shall be submitted first to non-binding mediation. Mediation shall take place at a location to be designated by the parties using the Mediation Procedures of the Rules for Non-Administered Arbitration of the International Institute for Conflict Prevention and Resolution (the "IICPR"), with the exception of paragraph 2 (Selecting the Mediator).

(b) If mediation is not successful within 90 days after the initial request for mediation, then such dispute shall be submitted to binding arbitration in accordance with the IICPR. Any issue concerning the extent to which any dispute is subject to arbitration, or concerning the applicability, interpretation, validity or enforceability of these dispute resolution procedures, shall be governed by the Federal Arbitration Act and resolved by the arbitrators. By operation of this provision, the parties agree to forego litigation over such disputes in any court of competent jurisdiction.

(c) Arbitration shall take place in New York, New York and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1, et seq. Party-selected arbitrators shall be selected from the lists of neutrals maintained by either the IICPR or by JAMS, Inc., but the chair of the arbitration panel does not have to be selected from those specific lists. The arbitration panel shall have no power to award non-monetary or equitable relief of any sort except as provided in IICPR Rule 13 (Interim Measures of Protection). Damages that are inconsistent with Section 6 above shall be



unavailable in arbitration or any other forum. In no event, even if any other portion of these provisions is held to be invalid or unenforceable, shall the arbitration panel have power to make an award or impose a remedy that could not be made or imposed by a court deciding the matter in the same jurisdiction.

(d) Either party may seek to enforce any written agreement reached by the parties during mediation, or to confirm, enforce or vacate any final award entered in arbitration, in any court of competent jurisdiction, provided that such party will file such motion under seal unless prohibited under applicable court rules.

(e) Notwithstanding the agreement to such procedures, either party may seek equitable relief to enforce its rights in any court of competent jurisdiction.

**16. Miscellaneous.**

(a) Independent Contractor. KPMG's relationship with Client is that of an independent contractor and neither party is an agent, distributor or representative of the other. Unless otherwise agreed to by the parties in writing, neither party shall act or represent itself, directly or by implication, as an agent of the other or in any manner assume or create any obligation on behalf of, or in the name of, the other.

(b) Use of Names and Logos. We may reference you as a customer in our marketing materials, including KPMG websites and social media, indicating the general services rendered (e.g., "Client is an Audit, Advisory and/or Tax client of KPMG LLP."). In addition, you give us the right to use your logo for internal KPMG presentations and intranet sites.

(c) Export Control/Sanctions.

(i) Each party shall comply with all Applicable Export Control Laws and Applicable Sanctions in the performance of each party's respective activities under the Engagement Letter and in the use of all technology provided by KPMG hereunder. Further, Client shall not provide access to any technology provided by KPMG to users in the Russian Federation for services to the Russian Federation that have been banned by Applicable Sanctions. Client shall not provide KPMG, or grant KPMG access to, (A) information (including technical data or technology) verbally, electronically or in hardcopy, (B) software or (C) hardware, that is controlled for export by the United States government.

(ii) Each party represents to the other that neither it nor the KPMG Parties (with regard to KPMG) nor the Client Parties (with regard to the Client) are (A) organized, incorporated or resident in jurisdictions subject to comprehensive sanctions (by way of example, Cuba, Iran and North Korea or certain regions of Ukraine); (B) listed in Applicable Sanctions or (C) owned 50% or more or controlled by persons described in (A) or (B). Further, Client represents that it is not engaging KPMG to provide services directly or indirectly to the jurisdictions in (A) or to any party in (B) or (C).

(iii) Each party shall promptly notify the other upon determining or having reason to believe that it is sanctioned under Applicable Sanctions or can no longer make the above representations and warranties or otherwise comply with the provisions of this paragraph. KPMG may suspend or terminate access to technology if it concludes that providing access to the technology pursuant to this Agreement would cause a violation of Applicable Sanctions or Applicable Export Control Laws.

(d) Force Majeure. Except for the obligation of a party to make payments required hereunder, neither party shall be responsible for any delay or failure in performance of any part of this Agreement or the Services to the extent that such delay or failure is caused by reason of a Condition. The Delayed Party shall be excused from such performance on a day-to-day basis during the continuance of such Condition (and the other party shall likewise be excused from performance of its obligations on a day-to-day basis during the same period); provided, however, that the Delayed Party shall use commercially reasonable efforts to avoid or remove such Condition, and both parties shall proceed promptly with the performance of their obligations under this Agreement whenever such Condition is removed or ceases. If the Condition continues for more than ninety (90) days, then the party affected may terminate this Agreement upon written notice to the Delayed Party.

(e) Personnel. KPMG is owned by professionals who hold CPA licenses as well as by professionals who are not licensed CPAs. Depending on the Services KPMG is providing, non-CPA holders may provide the Services under the Agreement.

(f) Data Privacy. KPMG shall comply with and process personal data provided by or on behalf of the Client in connection with the Services in accordance with the Data Privacy Framework and its privacy policy located at https://kpmg.com/us/en/home/misc/privacy.html. Subject to the provisions of Section 11, KPMG agrees to: (1) not sell Client personal data, and only process such data for limited and specified purposes of providing the



Services and (2) provide Client notice if it can no longer process Client personal data in compliance with these obligations.

(g) Disclaimer. Except as expressly stated in this Agreement, KPMG expressly disclaims and makes no warranties of any kind or nature, express or implied, with respect to the Services, Advice, Deliverables or any technology made available by KPMG, including warranties of merchantability, fitness for a particular purpose or use or non-infringement.

(h) Order of Precedence. In the event of a conflict between the provisions of these Standard Terms and Conditions for Advisory and Tax Services and the specific provisions in the Engagement Letter, the terms of these Standard Terms and Conditions for Advisory and Tax Services shall control except to the extent the Engagement Letter expressly references the provisions of these Standard Terms and Conditions for Advisory and Tax Services which they modify.

**17. Additional terms for engagements involving tax services.**

This Section 17 shall apply only to KPMG's performance of tax Services.

(a) Client expressly permits KPMG and any relevant KPMG Resource involved in provision of Services hereunder to make disclosures required pursuant to IRC sections 6011,6111 and 6112 and/or similar or analogous requirements of any state or other jurisdiction (domestic or foreign). Client will use commercially reasonable efforts to inform KPMG if Client is required to disclose any transaction covered by the Engagement Letter as a reportable transaction to the Internal Revenue Service ("IRS") or to any state or other jurisdiction (domestic or foreign) adopting similar or analogous provisions to IRC section 6011. KPMG will use commercially reasonable efforts to inform Client if KPMG provides Client's identifying information to the IRS under IRC section 6111 or 6112, or to any state tax authority or other jurisdiction (domestic or foreign) adopting similar or analogous provisions thereto.

(b) Unless expressly provided for in the Engagement Letter, KPMG's Services do not include representing Client in the event of a challenge by the IRS or other tax or revenue authorities.

(c) In rendering tax advice, KPMG may consider, for example, the applicable provisions of the IRC and the Employee Retirement Income Security Act of 1974, each as amended, and the relevant state, local and foreign statutes, the regulations thereunder, income tax treaties and judicial and administrative interpretations thereof. These authorities are subject to change, retroactively or prospectively, and any such changes could affect the validity of KPMG's advice.

(d) With respect to "tax return information" as defined in IRC section 7216, the consents provided in Sections 10 and 11 shall survive for ten years or for such longer periods as required in order for KPMG to assist Client with future tax-related needs and/or to comply with legal, regulatory and professional standards. Client may subsequently decline to continue to provide such consent with respect to tax return information by notifying KPMG thereof in writing and, in such case, KPMG may terminate this Agreement by providing written notice thereof to Client.

**18. Entire agreement; amendment.**

This Agreement constitutes the final, complete and exclusive agreement between the parties with respect to the subject matter of the foregoing and supersedes all other previous and contemporaneous oral and written agreements relating to that subject matter. Any amendments to the Agreement must be made in writing.

